

22STCV09491 22STCV09491

County: los-angeles

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Case Number: 22STCV09491 Hearing Date: July 28, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

CHARLES THORNTON

,

Plaintiff,

vs.

RALPHS GROCERY COMPANY DBA RALPHS

, et al.;

Defendants.

Case

No.:

22STCV09491

Hearing

Date:

July
28, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF CHARLES THORNTON'S MOTION TO COMPEL
RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS PER CCP 1987(C)

MOVING PARTY: Plaintiff, Charles Thornton

RESPONDING

PARTY: Defendant, Ralphs Grocery
Company dba Ralphs

(1)

Plaintiff

Charles Thornton's Motion to Compel Responses to Requests for Production of
Documents Per CCP 1987(c) is DENIED pursuant to Code of Civil Procedure section
1987, subdivision (c).

The Court considers the moving
papers filed on April 22, 2026, and the opposition brief filed on July 15, 2026. To date, no reply brief has been filed.

BACKGROUND

Factual Background

On March 17, 2022, plaintiff Charles
Thornton ("Plaintiff") filed the Complaint against defendants Ralphs Grocery
Company dba Ralphs ("Ralphs"), the Kroger Co., and DOES 1 through 50. The Complaint includes the following causes of
action: (1) Negligence and (2) Premises Liability.

On April 2, 2026, Plaintiff

emailed Defendant the Notice to Appear at Trial in Lieu of Subpoena and Notice to Produce Evidence at Trial, requesting that "Defendant Michael Cale attend[] the trial in this action to testify as a witness on April 23, 2026, at 1:30p.m. in Department 5 of the Superior Court of Los Angeles, Inglewood Courthouse, 1 Regent Street, Inglewood, CA 90301."
(Declaration of Tomas Ross ("Ross Decl."), Exh. 3, p. 1:23-26.)

On April 6, April 8, and April 22, 2026, Plaintiff's counsel emailed Defendant's counsel to inquire whether Defendant would be producing Cale at trial in accordance with the notice. (Ross Decl., ¶ 6, Exh. 4.) However, Plaintiff's counsel did not receive a response. (Ross Decl., ¶¶ 6-7, Exh. 4.)

LEGAL STANDARDS

"In the case of the production of a party to the record of any civil action or proceeding or of a person for whose immediate benefit an action or proceeding is prosecuted or defended or of anyone who is an officer, director, or managing agent of any such party or person, the service of a subpoena upon any such witness is not required if written notice requesting the witness to attend before a court, or at a trial of an issue therein, with the time and place thereof, is served upon the attorney of that party or person. The notice shall be served at least 10 days before the time required for attendance unless the court prescribes a shorter time. If entitled thereto, the witness, upon demand, shall be paid witness fees and mileage before being required to testify. The giving of the notice shall have the same effect as service of a subpoena on the witness, and the parties shall have those rights and the court may make those orders, including the imposition of sanctions, as in the case of a subpoena for attendance before the court." (Code Civ. Proc., § 1987, subd. (b).)

"If the notice specified in subdivision (b) is served at least 20 days before the time required for attendance, or within any shorter period of time as the court may order, it may include a request that the party or person bring with him or her books, documents, electronically stored information, or other things. The notice shall state the exact materials or things desired and that the party or person has them in his or her possession or under his or her control. Within

five days thereafter, or any other time period as the court may allow, the party or person of whom the request is made may serve written objections to the request or any part thereof, with a statement of grounds. Thereafter, upon noticed motion of the requesting party, accompanied by a showing of good cause and of materiality of the items to the issues, the court may order production of items to which objection was made, unless the objecting party or person establishes good cause for nonproduction or production under limitations or conditions. The procedure of this subdivision is alternative to the procedure provided by Sections 1985 and 1987.5 in the cases herein provided for, and no subpoena duces tecum shall be required." (Code Civ. Proc., § 1987, subd. (c).)

DISCUSSION

Pursuant to Code of Civil Procedure section 1987, subdivision (c), Plaintiff is seeking a court order to compel Defendant to produce the following documents: (1) "[a]ny and all surveillance video(s) of Plaintiff[.]" (2) "[a]ny and all written reports regarding surveillance video(s) of Plaintiff[.]" (3) "[a]ny and all documents evidencing payments related to surveillance video(s) of Plaintiff including but not limited billing and/or invoices[.]" (4) "[a]ny and all surveillance photographs of Plaintiff[.]" (5) "[a]ny and all written reports regarding photographs of Plaintiff[.]" (6) "[a]ny and all documents evidencing payments related to photographs of Plaintiff including but not limited billing and/or invoices[.]" and (7) "[a]ny and all documents regarding investigation of Plaintiff's physical activities." (Motion, p. 2:6-15.)

Here, Plaintiff's request is DENIED. Plaintiff failed to serve the Defendant with a Notice to Appear at Trial in Lieu of Subpoena and Notice to Produce Evidence at Trial but rather directed it to "Defendant Michael Cale."

On April 2, 2026, Plaintiff emailed Defendant the Notice to Appear at Trial in Lieu of Subpoena and Notice to Produce Evidence at Trial, requesting that "Defendant Michael Cale attend[] the trial in this action to testify as a witness on April 23, 2026, at 1:30p.m. in Department 5 of the Superior Court of Los Angeles, Inglewood Courthouse, 1 Regent Street, Inglewood, CA 90301." (Ross Decl., Exh. 3, p. 1:23-26.)

The Court observes that Cale is not a defendant in this case; rather, he is an employee of Defendant. Defendant correctly notes that "[a] notice to

appear directed to an individual requires that individual to attend and produce; it does not operate as a document demand on the corporation that employs him. Ralphs is not Michael Cale.

Michael Cale is not Ralphs. A compulsion order under Section 1987(c) runs to the person upon whom the notice is directed, in this case, Michael Cale individually, and not to a separate corporate defendant." (Opp., p. 3:22-27.) Since Plaintiff did not request that Defendant produce Cale as the person most knowledgeable or qualified in lieu of a subpoena, the Court is unable to grant this motion.

Accordingly, the Plaintiff's motion is DENIED.

ORDERS

1) Plaintiff

Charles Thornton's Motion to Compel Responses to Requests for Production of Documents Per CCP 1987(c) is DENIED.

2) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 28, 2026

Tamara
Hall

Judge
of the Superior Court